

Memo.No.2665/SC.E/87-3, Genl.Admn.(SC.E) Dept., dt.23.02.1988: Commissioner of Inquiries to be appointed as Inquiry Officer by designation, not by name.

Subject Heading : Commissioner of Inquiries - appointment by designation

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Sub-rule (2) of Rule 19 of the A.P.C.S (CC&A) Rules, 1963 states inter alia that the authority competent to impose penalty shall appoint an Inquiry Officer who shall be senior in rank to the person on whom it is proposed to impose the penalty. The said rule does not specify whether the Inquiry Officer should be appointed by name or by office. It has been brought to the notice of the Government, that in several cases the, Inquiry Officer has been appointed by name, which has resulted in the stoppage of enquiry by Commissioner for Departmental Enquiries.

2. All the Departments of Secretariat are, therefore, requested to appoint the Commissioner for Departmental Enquiries as Inquiry Officer by designation in future while entrusting the cases to him.